

Israr Husain v. Pashchimanchal Vidhut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 2 November 2021 · Writ-C No. 19501 of 2021 · Writ-C No. 19501 of 2021 · **Writ listed; licensee to decide objection under clause 5.6; Rs.10,000 deposit recorded.**

HEADNOTE

In a pending writ against Pashchimanchal Vidhut Vitran Nigam Ltd., the Allahabad High Court recorded the licensee's statement that the consumer's objection would be considered and decided by a reasoned speaking order under the U.P. Electricity Supply Code, 2005, taking clause 5.6 into account, accepted the petitioner's undertaking to deposit Rs.10,000 towards arrears, and listed the petition. Clause 5.6 was not construed.

FACTUAL SUMMARY

Israr Husain petitioned the Allahabad High Court against Pashchimanchal Vidhut Vitran Nigam Ltd. over a meter and billing dispute. On 2 November 2021, counsel for the licensee stated that the petitioner's objection (Annexure 8) would be considered and decided by a reasoned speaking order under the U.P. Electricity Supply Code, 2005, taking clause 5.6 into account. The petitioner undertook to deposit Rs.10,000 towards arrears. The writ was listed and later adjourned on 4 August 2025 on an illness slip.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::5.6

consideration of consumer objection pending writ

HOLDING

On the licensee's statement, the Court recorded that the consumer's objection would be considered and decided by a reasoned speaking order as per the U.P. Electricity Supply Code, 2005, taking clause 5.6 into consideration, expected within three weeks; accepted the consumer's undertaking to deposit Rs.10,000 towards arrears of electricity dues; and listed the writ. No construction of clause 5.6 was rendered. ¶ 2

PRINCIPLE TAGS

procedural-listing-no-construction The 2 November 2021 order only records the licensee's undertaking to decide the consumer's objection under clause 5.6 by a speaking order and the consumer's Rs.10,000 deposit; the 16 September 2021 and 4 August 2025 orders are pure listings. Clause 5.6 was not construed. ¶ 1-3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE CONSUMER'S OBJECTION AND ANY CLAUSE 5.6 METER-TESTING OR ASSESSMENT DISPUTE

Left to the licensee to decide by speaking order; the writ remains pending. ¶ 2